

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

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EDWINA FRANCES MARTIN, Public Administrator of
Richmond County, as Temporary and Limited
Administrator of all and singular the personal property,
goods, chattels and credits of the Estate of CARLOS
ALFONSO, Jr., individually,

SUMMONS

Plaintiff, Index No.:

-against-

The Basis of Venue is:
Location of Incident

THE CITY OF NEW YORK, POLICE OFFICER RYAN
CACKOWSKI, Tax No. 951576, POLICE OFFICER
BRIAN DEGEN, Tax No. 955859, LIEUTENANT
FLORIN KUKA, Tax No. 936047, DETECTIVE JACK
DAGNESE, Tax No. 948842, and POLICE OFFICERS
JOHN DOES NUMBERS ONE THROUGH TEN,

Plaintiff designates RICHMOND
County as the place of trial.

Defendants.

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To the above-named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
July 3, 2022

Yours, etc.

David Hazan

JACOBS & HAZAN, PLLC
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: The City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER RYAN CACKOWSKI, Tax No. 951576, Narcotics Borough Staten
Island, 1 Police Plaza, Room 110-c, New York, New York
POLICE OFFICER BRIAN DEGEN, Tax No. 955859, Narcotics Borough Staten Island,
1 Police Plaza, Room 110-c, New York, New York
LIEUTENANT FLORIN KUKA, Tax No. 936047, 121st Precinct, 970 Richmond Ave,
Staten Island, NY 10314
DETECTIVE JACK DAGNESE, Tax No. 948842, Organized Crime Investigation
Division

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

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EDWINA FRANCES MARTIN, Public Administrator of
Richmond County, as Temporary and Limited
Administrator of all and singular the personal property,
goods, chattels and credits of the Estate of CARLOS
ALFONSO, Jr., individually,

INDEX NO.:

VERIFIED COMPLAINT

Plaintiff,

JURY TRIAL DEMANDED

-against-

THE CITY OF NEW YORK, POLICE OFFICER RYAN
CACKOWSKI, Tax No. 951576, POLICE OFFICER
BRIAN DEGEN, Tax No. 955859, LIEUTENANT
FLORIN KUKA, Tax No. 936047, DETECTIVE JACK
DAGNESE, Tax No. 948842, and POLICE OFFICERS
JOHN DOES NUMBERS ONE THROUGH TEN,

Defendants.

----- X

Plaintiff, EDWINA FRANCES MARTIN, Public Administrator of Richmond County, as
Temporary and Limited Administrator of all and singular the personal property, goods, chattels
and credits of the Estate of CARLOS ALFONSO, JR., individually, by her attorneys Jacobs &
Hazan, PLLC, as and for her Verified Complaint herein, alleges upon information and belief as
follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of
defendants' violation of the rights of plaintiff's decedent, CARLOS ALFONSO, JR., deceased,
as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by
the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the
common law and the laws of the State of New York. On July 3, 2019, at approximately 4:00
p.m., plaintiff's decedent, CARLOS ALFONSO, Jr., deceased, while a lawful passenger in a
motor vehicle traveling in the vicinity of 310 Nicholas Avenue, Staten Island, New York, was
subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the
defendant New York City police officers. Additionally, the defendants unlawfully seized \$329
from plaintiff's decedent, CARLOS ALFONSO, Jr., deceased, despite the fact that the
defendants did not possess any objective evidence that established a basis for defendants to
allege the money was obtained through criminal activity. Plaintiff's decedent, CARLOS
ALFONSO, Jr., deceased, was denied the right to due process and a fair trial. Plaintiff's

decendent, CARLOS ALFONSO, Jr., deceased, was deprived of his constitutional and common law rights when the individual defendants unlawfully searched, confined, falsely arrested, falsely imprisoned, and denied CARLOS ALFONSO, JR. the right to due process and a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

1. CARLOS ALFONSO, JR. died September 3, 2019.

2. That, at all times hereinafter mentioned, the plaintiff EDWINA FRANCES MARTIN, Public Administrator of Richmond County, maintains her offices at 130 Stuyvesant Pl, #402, Staten Island, NY 10301, and that her interest in this matter is as Public Administrator of Richmond County.

3. That, upon information and belief, on June 29, 2022, the plaintiff EDWINA FRANCES MARTIN, Public Administrator of Richmond County, was appointed Administrator of the Estate of CARLOS ALFONSO, JR., deceased, by the Richmond County Surrogates Court.

4. POLICE OFFICER RYAN CACKOWSKI, Tax No. 951576, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

5. POLICE OFFICER RYAN CACKOWSKI, Tax No. 951576, is and was at all times relevant herein, assigned to the Narcotics Borough Staten Island.

6. POLICE OFFICER RYAN CACKOWSKI, Tax No. 951576, is being sued in his individual and official capacity.

7. POLICE OFFICER BRIAN DEGEN, Tax No. 955859, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

8. POLICE OFFICER BRIAN DEGEN, Tax No. 955859, is and was at all times relevant herein, assigned to the Narcotics Borough Staten Island.

9. POLICE OFFICER BRIAN DEGEN, Tax No. 955859, is being sued in his individual and official capacity.

10. LIEUTENANT FLORIN KUKA, Tax No. 936047, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

11. LIEUTENANT FLORIN KUKA, Tax No. 936047, was at all times relevant herein, assigned to Narcotics Borough Staten Island and is currently assigned to the 121st Precinct.

12. LIEUTENANT FLORIN KUKA, Tax No. 936047, is being sued in his individual and official capacity.

13. DETECTIVE JACK DAGNESE, Tax No. 948842, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

14. DETECTIVE JACK DAGNESE, Tax No. 948842, was at all times relevant herein, assigned to the Narcotics Borough Staten Island and is currently assigned to the Organized Crime Investigation Division.

15. DETECTIVE JACK DAGNESE, Tax No. 948842, is being sued in his individual and official capacity.

16. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

17. Police Officers John Does #1-10 are being sued in their individual and official capacities.

18. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

19. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

20. CARLOS ALFONSO, JR., deceased, in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

21. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

22. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

23. CARLOS ALFONSO, JR. has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

24. On July 3, 2019, at approximately 4:00 p.m., CARLOS ALFONSO, JR. was a lawful passenger in a motor vehicle traveling in the vicinity of 310 Nicholas Avenue, Staten Island, New York when the defendant police officers unlawfully stopped the motor vehicle and unlawfully handcuffed and falsely arrested CARLOS ALFONSO, JR. without reasonable suspicion or probable cause.

25. The defendant officers ordered CARLOS ALFONSO, JR., to get out of the vehicle and proceeded to search the vehicle without legal justification or probable cause.

26. At no point relevant herein did the defendant police officers recover any drugs, weapons or other contraband from CARLOS ALFONSO, JR., or from CARLOS ALFONSO, JR.'S. possession, custody, or control.

27. At no time relevant herein did CARLOS ALFONSO, JR., commit a crime or violate the law, nor did CARLOS ALFONSO, JR., behave in a manner that would lead a reasonable police officer to believe CARLOS ALFONSO, JR. committed, was about to commit or was committing a crime.

28. Nevertheless, CARLOS ALFONSO, JR., was unlawfully handcuffed and falsely arrested by the defendant officers without legal justification or probable cause.

29. Defendants unlawfully searched CARLOS ALFONSO, JR., without probable cause or legal justification.

30. The defendants unlawfully seized \$329 from CARLOS ALFONSO, JR. and the money was never returned to CARLOS ALFONSO, JR.

31. CARLOS ALFONSO, JR., was transported by the defendant police officers to the 121st precinct against his will, where he was unlawfully photographed, searched, fingerprinted, and detained in a holding cell by the defendants.

32. After several hours in unlawful custody, CARLOS ALFONSO, JR. was transported from the 121st Precinct to Staten Island Central Booking.

33. The defendant police officers provided the District Attorney's Office with false, misleading and/or incomplete information about the facts that allegedly led them to believe that CARLOS ALFONSO, JR. committed a crime.

34. On July 4, 2019, after being unlawfully detained for approximately 24 hours, the District Attorney's Office declined to prosecute CARLOS ALFONSO, JR., and CARLOS ALFONSO, JR. was released from custody without being prosecuted or criminally charged with a crime.

35. Some of the police officer defendants observed the violation of CARLOS ALFONSO, JR.'S rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, seizure, false arrest and imprisonment, and denial of CARLOS ALFONSO, JR.'S right to due process and a fair trial.

36. The unlawful search, seizure, false arrest and imprisonment, unlawful seizure of CARLOS ALFONSO Jr's money, and the denial of CARLOS ALFONSO, JR'S. right to a fair trial by the individually named defendants caused CARLOS ALFONSO, JR. to sustain physical, psychological, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Carlos Alfonso, Jr's. Fourth and Fourteenth Amendment Rights

37. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 36 with the same force and effect as if more fully set forth at length herein.

38. The individually named police officer defendants while acting in concert and within the scope of their authority, unlawfully seized \$329 from CARLOS ALFONSO, JR., caused CARLOS ALFONSO, JR. to be unlawfully seized, unlawfully stopped, questioned, frisked, searched, falsely arrested, and falsely imprisoned CARLOS ALFONSO, JR., without reasonable suspicion and/or probable cause, in violation of CARLOS ALFONSO, JR'S. right to be free of an unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

39. As a result of the aforementioned conduct of defendants, CARLOS ALFONSO, JR. sustained injuries, including but not limited to physical, economic, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

40. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.

41. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine CARLOS ALFONSO, JR. and, in fact, confined CARLOS ALFONSO, JR., and CARLOS ALFONSO, JR. was conscious of the confinement. In addition, CARLOS ALFONSO, JR. did not consent to the confinement and the confinement was not otherwise privileged.

42. As a direct and proximate result of such acts, defendants deprived CARLOS ALFONSO, JR. of his rights under the laws of the State of New York and the United States Constitution.

43. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

44. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

45. As a result of the aforementioned conduct of defendants, CARLOS ALFONSO, JR. sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

46. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 45 with the same force and effect as if more fully set forth at length herein.

47. The illegal approach, pursuit, stop, and search employed by defendants herein terminated CARLOS ALFONSO, JR.'S. freedom of movement through means intentionally applied.

48. Defendants lacked probable cause to search CARLOS ALFONSO, JR.

49. As a direct and proximate result of such acts, defendants deprived CARLOS ALFONSO, JR. of his rights under the laws of the State of New York.

50. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

51. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

52. As a result of the aforementioned conduct of defendants, CARLOS ALFONSO, JR. sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION.

Denial of Right to Fair Trial

53. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein

54. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Staten Island County District Attorney's Office.

55. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the District Attorney's Office.

56. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the District Attorney's Office.

57. In withholding/creating false evidence against CARLOS ALFONSO, JR., and in providing/withholding information with respect thereto, defendants violated CARLOS ALFONSO, JR.'s constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

58. As a result of the foregoing, CARLOS ALFONSO, JR., sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, and deprivation of his constitutional rights.

59. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

60. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

61. As a result of the aforementioned conduct of defendants, CARLOS ALFONSO, JR. sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

62. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 61 with the same force and effect as if more fully set forth at length herein.

63. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to CARLOS ALFONSO, JR. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to CARLOS ALFONSO, JR. and violated CARLOS ALFONSO, JR.'S. statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

64. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to CARLOS ALFONSO, JR. and violated CARLOS ALFONSO, JR.'S. statutory and common law rights as guaranteed CARLOS ALFONSO, JR. by the laws and Constitution of the State of New York.

65. As a direct and proximate result of such acts, defendants deprived CARLOS ALFONSO, JR. of his rights under the laws of the State of New York.

66. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

67. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

68. As a result of the aforementioned conduct of defendants, CARLOS ALFONSO, JR. sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

69. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein.

70. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise

defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

71. As a result of the aforementioned conduct of defendants, CARLOS ALFONSO, JR. sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Failure to Intervene

72. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.

73. The defendants that did not physically touch CARLOS ALFONSO, JR., but were present when other officers violated CARLOS ALFONSO, JR.'S. Constitutional Rights had an affirmative duty to intervene on behalf of CARLOS ALFONSO, JR., whose constitutional rights were being violated in their presence by other officers.

74. Defendants failed to intervene to prevent the unlawful conduct described herein.

75. As a result of the foregoing, CARLOS ALFONSO, JR.'S. liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

76. As a direct and proximate result of such acts, defendants deprived CARLOS ALFONSO, JR. of his rights under the laws of the State of New York.

77. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

78. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

79. As a result of the aforementioned conduct of defendants, CARLOS ALFONSO, JR. sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

80. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 79 with the same force and effect as if more fully set forth at length herein.

81. That, upon information and belief, defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

82. That, upon information and belief, the aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to, illegally stopping, questioning, searching, and arresting individuals without a specific, articulable factual basis supporting a reasonable suspicion and probable cause to believe the individual secreted contraband, evidence, or has a weapon on their person, as well as inadequate screening, hiring, retaining, training, and supervising its employees with respect to this issue.

83. That, upon information and belief, the aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of the rights of plaintiff's decedent, CARLOS ALFONSO, JR., deceased, as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

84. That, upon information and belief, the foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff's decedent, CARLOS ALFONSO, JR., deceased, as alleged herein.

85. That, upon information and belief, the foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff's decedent CARLOS ALFONSO, JR., deceased, as alleged herein.

86. That, upon information and belief, as a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff's decedent, CARLOS ALFONSO, JR., deceased, was unlawfully stopped, questioned, searched and arrested

87. That, upon information and belief, defendants collectively and individually, while acting under color of state law were directly and actively involved in violating the constitutional rights of plaintiff's decedent, CARLOS ALFONSO, JR., deceased.

JURY DEMAND

88. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff EDWINA FRANCES MARTIN, Public Administrator of Richmond County, as Temporary and Limited Administrator of all and singular the personal property, goods, chattels and credits of the Estate of CARLOS ALFONSO, JR. demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff EDWINA FRANCES MARTIN, Public Administrator of Richmond County, as Temporary and Limited Administrator of all and singular the personal property, goods, chattels and credits of the Estate of CARLOS ALFONSO, JR., recovers the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
July 3, 2022

By: David Hazan
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: The City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
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Division

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein, I maintain my office.

DATED: New York, New York
July 3, 2022

David Hazan

DAVID M. HAZAN